

An Act

ENROLLED SENATE
BILL NO. 1325

By: Coleman of the Senate

and

Hasenbeck and Hefner of the
House

An Act relating to domestic abuse; amending 22 O.S. 2021, Section 60.17, which relates to the Protection from Domestic Abuse Act; providing exception to certain court order; requiring defendants released on bond to use a Global Positioning System (GPS) device; requiring costs of device to be paid by the defendant; providing an exception; directing the Department of Corrections to provide list of GPS monitoring programs or systems; providing for the removal of GPS devices under certain circumstances; authorizing victims to monitor the location of defendants via computer- or cellular-generated signals; and providing an effective date.

SUBJECT: Protection from Domestic Abuse Act

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 60.17, is amended to read as follows:

Section 60.17. A. The court shall consider the safety of any and all alleged victims of domestic violence, stalking, harassment, sexual assault, or forcible sodomy where the defendant is alleged to have violated a protective order, committed domestic assault and battery, stalked, sexually assaulted, or forcibly sodomized the alleged victim or victims prior to the release of the alleged defendant from custody on bond. The court, after consideration and

to ensure the safety of the alleged victim or victims, may issue an emergency protective order pursuant to the Protection from Domestic Abuse Act. The court may also issue to the alleged victim or victims an order restraining the alleged defendant from any activity or action from which ~~they~~ he or she may be restrained under the Protection from Domestic Abuse Act. The court shall not consider a "no contact order as condition of bond" as a factor when determining whether the petitioner is eligible for relief. The protective order shall remain in effect until either a plea has been accepted, sentencing has occurred in the case, the case has been dismissed, or until further order of the court dismissing the protective order. In conjunction with any protective order or restraining order authorized by this section, the court may order the defendant to use an active, real-time, twenty-four-hour Global Positioning System (GPS) monitoring device for such term as the court deems appropriate. Upon application of the victim, the court may authorize the victim to monitor the location of the defendant. Such monitoring by the victim shall be limited to the ability of the victim to make computer or cellular inquiries to determine if the defendant is within a specified distance of locations, excluding the residence or workplace of the defendant, or to receive a computer- or a cellular-generated signal if the defendant comes within a specified distance of the victim. The court shall conduct an annual review of the monitoring order to determine if such order to monitor the location of the defendant is still necessary. Before the court orders the use of a GPS device, the court shall find that the defendant has a history that demonstrates an intent to commit violence against the victim, including, but not limited to, prior conviction for an offense under the Protection from Domestic Abuse Act or any other violent offense, or any other evidence that shows by a preponderance of the evidence that the defendant is likely to commit violence against the victim. The court may further order the defendant to pay costs and expenses related to the GPS device and monitoring, unless the court finds the defendant indigent, and in that event may order an alternative payment fund, county services fund, or other condition in lieu of payment, if available.

B. 1. In addition to monitoring by the victim pursuant to subsection A of this section, the court may order any defendant charged with domestic abuse by strangulation, domestic abuse with a dangerous or deadly weapon, or domestic abuse after a previous adjudication for domestic abuse to not be released on bail without

GPS monitoring. The cost of the monitoring device and monitoring service shall be paid by the defendant at his or her own expense until the conclusion of the criminal case, unless the court finds the defendant indigent, and in that event may order an alternative payment fund, county services fund, or other condition in lieu of payment, if available. The Department of Corrections shall provide a list of appropriate GPS monitoring programs or systems for use by the courts and provide minimum requirements for jurisdictions that do not use the programs on the list. At the conclusion of the criminal case, the court shall order the removal of the GPS monitoring device if the defendant is acquitted, is to be incarcerated, the case is dismissed or as determined by the court.

2. Upon application of the victim, the court may authorize the victim to monitor the location of the defendant by receiving a computer- or cellular-generated signal if the defendant is within a specified distance of the residence or workplace of the victim.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____